

24SMCV00010 24SMCV00010

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Case Number: 24SMCV00010 Hearing Date: August 13, 2026 Dept: M

CASE NAME: Glowa v. MDR L&M Apartments LLC, et al.

CASE NO.: 24SMCV00010

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 8/13/2026

Legal

Standard

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order

that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2023.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

ANALYSIS

Plaintiff Anna Glowa moves for an order compelling responses from Defendant Common Management Co. as to her Special Interrogatories, Set One. Glowa also moves for an order establishing the genuineness of any documents and the truth of any matters specified in her Requests for Admission, Set One, against Common. Plaintiff seeks monetary sanctions of \$3,375.00 per motion against Common and its counsel of record.

Plaintiff demonstrates proper service of the subject discovery. On May 28, 2026, Plaintiff email-served Defendant with the subject SROGs and RFAs. (Rosensweig Decl., ¶ 7.) On July 6, 2026, counsel for Defendant provided unverified responses. (Id., ¶ 8, Ex. A.) Unverified responses are tantamount to no response at all. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

Common claims that it was able to submit verifications on July 30, 2026. (Ullrich Decl. Ex. 2.) However, the presented exhibit is only an email stating that verifications are attached, without the referenced attachment. Thus, Common did not supply the Court with substantial evidence of the code compliant verifications.

In reply, Plaintiff contends that the responses were verified by an individual named Jason Palmer, and provide a copy of the verification. (Supp. Rosensweig Decl., Ex. A.) Based on Plaintiff counsel's research, Mr. Palmer works for an investment firm, Nuveen Services, LLC. Plaintiff provides no evidence in support of this proposition. In any event, the verification states that Palmer is an "authorized representative" of MDR L&M Apartments, a separate entity from Common. Thus, the record does not contain verifications by an agent or officer of Common. (CCP § 2030.250(b).)

Accordingly, the motions are GRANTED. The RFAs are deemed admitted. Common is ordered to provide code compliant responses to the requests for production within 30 days, without objection, and with a code compliant verification. Mandatory sanctions are imposed in the reduced total amount of \$2,120.00 against Common only. As discussed in the prior discovery hearing regarding Common, the circumstances show that the imposition of sanctions would be unjust as to counsel. Common is apparently at fault for the inability to verify the discovery responses. Sanctions are payable to Plaintiff's counsel of record within 30 days.